

6. 9:00 AM CASE NUMBER: C25-03333

CASE NAME: YESENIA RICO VS. JANE WANG

HEARING ON DEMURRER TO: CROSS-COMPLAINT

FILED BY: RICO, YESENIA

TENTATIVE RULING:

Cross-Defendant Yesenia Rico's demurrer to cross-complaint, and alternative motion to strike, is **continued to August 17, 2026 at 9:00 a.m.** in Department 34.

This action arises from a residential tenancy at 2065 Olivera Road, Unit D, a condominium in Concord. Plaintiff Yesenia Rico filed the operative complaint against her landlords, Jane Wang and Patrick Huang, alleging habitability defects in the unit. Wang and Huang filed a cross-complaint against Yesenia Rico and Noe Rico alleging that they breached the parties' written lease and committed waste on the property, based on alleged violations of the condominium's CC&Rs, physical damage to the unit, and refusal to permit access for inspection and repair. Rico demurs to the breach of contract and waste causes of action in the cross-complaint and, in the alternative, moves to strike certain allegations.

Before filing a demurrer, the demurring party must meet and confer in person, by telephone, or by video conference with the party who filed the pleading subject to demurrer, for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., § 430.41(a).) A declaration setting forth those efforts must accompany the demurrer. (Code Civ. Proc., § 430.41(a)(3).) The same meet and confer requirement applies to a motion to strike. (See Code Civ. Proc. § 435.5(a).)

Rico's counsel, Conrad Kuyawa, sought to satisfy this requirement by directing his paralegal to send a letter to Cross-Complainants' counsel, Gerard Lam, setting out the asserted defects in the cross-complaint. (April 28, 2026 Kuyawa Decl., ¶¶ 3-4, Exh. A.) In his reply declaration, Kuyawa asserts that this exchange was adequate because the letter was drafted at his direction and approved by him before it was sent, because section 430.41 does not require that meet and confer correspondence be transmitted by the attorney personally, and because a language barrier between counsel made a written exchange the more reliable way to avoid misunderstanding. (July 9, 2026 Kuyawa Decl., ¶¶ 5, 7, 11-12.)

Section 430.41(a) requires that the parties meet and confer in person, by telephone, or by video conference, not that one side send the other a letter stating its position. It is unclear whether the statute permits counsel to satisfy this requirement through a paralegal rather than personally, but even setting that question aside, a written exchange standing alone does not satisfy the statute. Nothing in this order precludes counsel from following an oral or video conference with a written confirmation of what was discussed and any agreements reached, which may be a good practice here.

The Court observes that the cross-complaint as currently pled does not identify the lease provision allegedly breached and does not separately state its theories of recovery. The pleading combines three theories of recovery: reimbursement for HOA fines arising from alleged CC&R violations, damages for waste to the property, and breach of a lease provision permitting entry for inspection and repair, none of which is separately stated or numbered as required by California Rules of Court, rule 2.112. The parties are encouraged to address these issues, along with any others raised in the moving and opposing papers, in a genuine effort to resolve them before the continued hearing. If the parties reach an agreement that Cross-Complainants will file an amended cross-complaint, they are

encouraged to notify the Court in advance of the continued hearing.

Accordingly, the demurrer is continued for counsel to meet and confer as required by the Code of Civil Procedure and this order. If the parties are unable to resolve the issues raised in the demurrer, and the Court's tentative ruling on the merits is contested, counsel may appear at that hearing to argue. Attorney Kuyawa shall file and serve a declaration describing the results of the meet and confer **no later than August 7, 2026.**

**7. 9:00 AM CASE NUMBER: C26-00404
CASE NAME: RAKEISHA HILL VS. CITY OF RICHMOND
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: CITY OF RICHMOND**

TENTATIVE RULING:

Introduction

Before the Court is Defendant City of Richmond's ("Defendant" or "The City") Demurrer to all causes of action in Plaintiff Rakeisha Hill's ("Plaintiff") First Amended Complaint "FAC". The FAC filed on April 20, 2026, contains three causes of action: 1) FEHA Disparate Treatment; 2) FEHA Retaliation; and 3) Whistleblower Retaliation.

For the following reasons, the **Demurrer to the FAC is sustained in part and overruled in part. The first cause of action is sustained with leave to amend, the second cause of action is overruled, and the third cause of action is sustained without leave to amend.**

Meet and Confer Requirement

Defendant satisfied its meet and confer requirement regarding their Demurrer in detailing their meet and confer efforts with Plaintiff's counsel in the Declaration of Charles R. Hellstrom. On May 13, 2026, Defendant emailed a meet and confer letter to Plaintiff. The next day the parties discussed the issues set forth in the meet and confer letter and were unable to come to an agreement. (Hellstrom Decl. at ¶¶3-4.)

Request for Judicial Notice

Defendant City of Richmond request that two exhibits be judicially noticed. Exhibit 1 is Plaintiff Rakeisha Hill's Government Claim and Application for Leave to Present Late Claim, dated September 16, 2025, and received by the City on September 19, 2025. Exhibit 2 is an October 31, 2025, letter from George Hills Company, Inc., the City's claims administrator, to Plaintiff denying Plaintiff's Application for Leave to Present a Late Claim.

Evidence Code section 452, subdivision (c), permits the Court to take judicial notice of "[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States." Defendant argues that judicial notice is proper under Exhibits 1 and 2 are City records concerning Plaintiff's attempted compliance with the Government Claims Act and the City's official action on Plaintiff's late-claim application. Courts may take judicial notice of the existence, filing, and contents of government claim documents and public entity records, though not the truth of disputed factual allegations contained in those documents. (See *Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 376 [where plaintiff alleges claim-presentation compliance, but public records do not reflect compliance, the public entity may request judicial notice under Evid. Code, § 452(c).])